

Accordingly, the motion to disqualify Plaintiff's counsel is granted.

25CV-04382

Ahmadzaki Arjmand, et al. vs Merced County Office of Education

Petition for Relief

The petition for relief from California Government Code section 945.4 is GRANTED.

Petitioners have met their burden to prove by a preponderance of the evidence that the late-claim application under Government Code section 911.2 was made within a reasonable time and that the statutory requirements of Government Code section 946.6 have been met. (*Drummond v. County of Fresno* (1987) 193 Cal.App.3d 1406, 1410.)

The Court finds that the situation presented by Petitioners is precisely that for which section 946.6, “a remedial statute intended to provide relief from technical rules which otherwise provide a trap for the unwary claimants,” applies. (*Ebersol v. Cowan* (1983) 35 Cal.3d 427, 435.) Notably, the preference for trial of issues on their merits applies here, and the Court must resolve any existing doubts in favor of the application. (*Spencer v. Merced County Office of Education* (1997) 59 Cal.App.4th 1429, 1436.)

The Court finds Petitioners’ claims of reasonable mistake or excusable neglect to be reasonable. The declarations accompanying the petition establish a reasonable effort to locate the owner of the vehicle (Merced County Office of Education “MCOE”) and diligent investigation to locate the appropriate agency for the filing of a claim. A timely claim was submitted to Merced County on the mistaken – but reasonable – belief that MCOE is a division of Merced County. (Joseph Decl. ¶¶ 5-7; Petition 3:7-9; Exhibit 1.) Counsel was not dilatory and diligently followed up with Merced County regarding the claim. (Joseph Decl. ¶ 11, 15.) Upon learning that Merced County was not the correct entity for the claim, counsel submitted a request for leave to present a late claim. (Petition 3:16-20.) The late claim was denied on May 23, 2025. (Petition 3:16-22, Exhibit 4.)

Unlike in *Spencer, supra*, where a similar error was made in the filing of the initial claim, Petitioner here was not promptly notified of the correct entity by Merced County. Rather, the County merely indicated that the claim was incorrectly filed and requested the claim be withdrawn. (Exhibit 2.) Furthermore, Petitioners’ attorney here made a diligent investigation into the identity of the correct entity for the initial claim, which continued after notification from Merced County that the claim had been incorrectly filed. Petitioners were on notice that MCOE was the owner of the vehicle, but the mistake lay not in identifying the correct entity, but in identifying where and how to properly file a claim, relying on the incorrect inference that MCOE would be an arm of the County of Merced. These mistakes were reasonable and counsel was diligent at every stage of the claims process.

The Court further finds that MCOE will not suffer prejudice should Petitioners’ request for relief be granted, and MCOE has presented no evidence to the contrary.

Petitioners are to file their complaint within thirty (30) days of this court’s order.